

MUTUAL NON-DISCLOSURE AND CONFIDENTIALITY AGREEMENT

Standard Commercial Form · Document Ref: NDA-2026-0801

Effective Date: August 1, 2026	Jurisdiction: State of Delaware, USA
Disclosing Party: Aether AI Technologies Inc.	Receiving Party: Zenith Enterprises LLC

This Mutual Non-Disclosure Agreement ("Agreement") is entered into as of the Effective Date written above, by and between **Aether AI Technologies Inc.**, a Delaware corporation, having its principal place of business at 100 Tech Boulevard, Suite 400, Wilmington, DE ("Party A"), and **Zenith Enterprises LLC**, a California limited liability company, having its principal place of business at 500 Market Street, San Francisco, CA ("Party B"). Party A and Party B are collectively referred to as the "Parties" and individually as a "Party".

1. Purpose & Confidential Information

The Parties wish to explore potential business collaboration and technical integration opportunities (the "Purpose"). In connection with the Purpose, each Party may disclose to the other Party certain technical, financial, or business information. "Confidential Information" means all information disclosed by one Party ("Disclosing Party") to the other Party ("Receiving Party"), whether orally, in writing, electronically, or by inspection of tangible objects, that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information and the circumstances of disclosure.

2. Exclusions from Confidentiality

Confidential Information does not include information that: (a) is or becomes publicly known through no breach of this Agreement by the Receiving Party; (b) was already known to the Receiving Party prior to disclosure without confidentiality restrictions; (c) is independently developed by the Receiving Party without reference to or use of the Disclosing Party's Confidential Information; or (d) is rightfully obtained from a third party without an obligation of confidentiality.

3. Non-Disclosure & Standard of Care

The Receiving Party agrees to protect the Disclosing Party's Confidential Information with the same degree of care it uses for its own confidential information of like nature, but no less than reasonable care. The Receiving Party shall not disclose Confidential Information to any third party, except to its employees, officers, and legal advisors who need to know such information for the Purpose and who are bound by confidentiality obligations at least as restrictive as those herein.

4. Term & Termination

This Agreement shall remain in effect for a period of three (3) years from the Effective Date, unless terminated earlier by either Party upon thirty (30) days prior written notice. The obligations of confidentiality and non-use with respect to Confidential Information disclosed prior to termination shall survive termination for a period of five (5) years.

5. Payment & Consideration

The Parties acknowledge that no financial exchange or licensing fee is contemplated or required under this Agreement. Each Party shall bear its own costs and expenses incurred in evaluating the Purpose. Standard reciprocal terms apply without penalty fees or billing requirements.

6. Return or Destruction of Materials

Upon written request of the Disclosing Party or upon expiration/termination of this Agreement, the Receiving Party shall promptly return or certify the destruction of all documents, notes, prototypes, and computer files containing Confidential Information within thirty (30) business days, retaining only archival backups as mandated by applicable regulatory compliance requirements.

7. Limitation of Liability & Remedies

Except for breaches of Section 3 (Non-Disclosure) and willful misconduct, neither Party shall be liable for indirect, special, incidental, or consequential damages arising out of this Agreement. Aggregate liability under this Agreement shall not exceed fifty thousand dollars (\$50,000 USD). The Receiving Party acknowledges that unauthorized disclosure would cause irreparable harm for which monetary damages alone would be inadequate, and the Disclosing Party shall be entitled to seek injunctive relief in any court of competent jurisdiction.

8. Governing Law & Dispute Resolution

This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, without regard to its conflict of law principles. Any dispute, claim, or controversy arising out of this Agreement shall be resolved through binding arbitration administered by the American Arbitration Association (AAA) in Wilmington, Delaware.

FOR AETHER AI TECHNOLOGIES INC.:

FOR ZENITH ENTERPRISES LLC:

Signature: _____

Name: Elena Vance, Chief Legal Officer

Date: August 1, 2026

Signature: _____

Name: Marcus Sterling, Managing Director

Date: August 1, 2026